

granted. The Court has signed the proposed order submitted by movant. Moving party is to give notice of this ruling.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602454	CHEN, M.D. vs UNIVERSAL HEALTH SERVICES OF RANCHO SPRINGS, INC.	MOTION FOR SPECIFIED DISCOVERY (CODE CIV. PROC. § 425.16(G))

Tentative Ruling:

Moving Party: Plaintiff Kenneth Chen, M.D.

Opposing Party: Defendants Universal Health Services of Rancho Springs, Inc. dba Southwest Healthcare System and Christine Hobbs

On 4/21/2026, Kenneth Chen, M.D. ("Plaintiff") filed a verified complaint for damages against Universal Health Services of Rancho Springs, Inc. dba Southwest Healthcare System ("UHS") and Christine Hobbs ("Hobbs" and collectively "Defendants") asserting various causes of action.

The complaint states that Plaintiff is a board-certified physician, currently practicing at the University of California, San Diego ("UCSD"). (Complaint, ¶ 7.) On 5/14/2025, while providing ICU coverage at a UHS facility, Plaintiff states he identified unsafe nursing practices. (*Id.* at ¶ 12.) The complaint alleges that thereafter, Hobbs and other nurses took retaliatory actions against Dr. Chen resulting in reassignment and a reduction in hours. (*Id.* at ¶ 40.) Relevant to this motion as well as the pending anti-SLAPP motion are two emails the complaint alleges were sent by Hobbs on 5/14/2025 and 5/15/2025. (the "May 14 Complaint" and the "May 15 Complaint"). The complaint states that via the May 14 Complaint and May 15 Complaint, Hobbs levied false accusations against Plaintiff regarding a failure to provide a "courtesy of a verbal notification when entering the ICU admission and critical medication orders" as well as being late to his shift and missing a "Code Blue." (*Id.* at ¶¶ 15-16.)

Now, Plaintiff brings a motion for specific discovery under CCP § 425.16(g), which allows a limited amount of discovery in order to respond to an anti-SLAPP motion (which otherwise stays discovery.) Plaintiff argues the discovery is necessary to oppose the anti-SLAPP motion. Specifically, Defendants' arguments that Plaintiff cannot show a probability of prevailing on the merits due to the May 14 Complaint and May 15 Complaint falling under the common interest privilege. Plaintiff states that the discovery is necessary to show malice to overcome the privilege. Plaintiff requests the following discovery be authorized by the court:

- Deposition of Christine Hobbs, limited to three hours
- Deposition of Raquel Mata, limited to three hours

- Nine requests for production to UHS
- A third party deposition subpoena and document production request to Adnan Begovic, M.D., limited to four hours, concerning his receipt and transmission of the May 14 Complaint and May 15 Complaint, his communications with hospital administration and UCSD concerning Plaintiff, the 7/17/2025 reassignment meeting, and the reasons for ending Plaintiff's ICU assignment at UHS
- A third party deposition subpoena and document production request to the person most knowledgeable at UCSD Health, concerning communications with Defendants regarding Plaintiff and the reasons for ending his assignment and reducing his appointment
- Up to 20 requests for admission for the purpose of authenticating documents

In opposition, Defendants argue the discovery is not necessary because the litigation privilege clearly applies to the May 14 Complaint and May 15 Complaint such that the court should not have to reach the analysis of the common interest privilege. Otherwise, Defendants argue Plaintiff fails to establish good cause for the discovery.

In reply, Plaintiff states Defendants still admit the common interest privilege is one issue pending in the anti-SLAPP motion which makes the discovery necessary.

ANALYSIS

Under CCP §425.16(g), “[a]ll discovery proceedings in the action shall be stayed upon the filing” of an anti-SLAPP motion. The discovery stay is to remain in effect until notice of entry of the order ruling on the anti-SLAPP motion.

Because a § 425.16 motion may be made within 60 days after service of the complaint (and must be heard within 30 days thereafter), responding party may need additional discovery to oppose the motion. If so, the responding party must move for an order allowing such discovery (and, if necessary, a continuance of the hearing). It cannot merely oppose the motion for lack of opportunity to obtain such information. (*Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 37 Cal.App.4th 855, 867.)

The court “on noticed motion and for good cause shown, may order that specified discovery be conducted” notwithstanding the stay. (CCP §425.16(g).) The court should allow reasonable and specified discovery “when evidence to establish a prima facie case is reasonably shown to be held, or known, by defendant or its agents and employees.” (*Lafayette Morehouse, Inc. supra*, 37 Cal.App.4th at 868.) If discovery is allowed, it will be limited to the issues raised by the anti-SLAPP motion; i.e., matters that may help plaintiff establish a “reasonable probability of prevailing” on the claim, rather than merely matters to impeach defendant’s credibility. (See *Sipple v. Foundation for Nat’l Progress* (1999) 71 Cal.App.4th 226, 247.)

To show good cause, however, plaintiff must make a prima facie showing at least as to the elements of the claim for which no discovery should be needed. (*Paterno v. Sup. Ct. (Ampersand Publishing)* (2008) 163 Cal.App.4th 1342,1349.) Alternatively, a plaintiff can show that defendant exclusively possesses information to establish a prima facie case (including the elements of falsity of statement or privilege) or that the information sought is not readily available from other sources. (See *The Garment Workers Center v. Superior Court* (2004) 117 Cal.App.4th 1156, 1162.)

Ultimately, the issue on this motion is whether Plaintiff is entitled to discovery to oppose the argument made in Defendants' anti-SLAPP motion regarding the common interest privilege as it relates to prong two of the anti-SLAPP analysis – that is, whether Plaintiff can show a probability of success on the merits. Defendants argue Plaintiff cannot because the May 14 Complaint and May 15 Complaint fall under the common interest privilege.

The privilege attaches to “a communication, without malice, to a person interested therein, (1) by one who is also interested, or (2) by one who stands in such a relation to the person interested as to afford a reasonable ground for supposing the motive for the communication to be innocent, or (3) who is requested by the person interested to give the information.” (Civil Code § 47(c).) “Application of the privilege involves a two-step analysis. The defendant has the initial burden of showing the allegedly defamatory statement was made on a privileged occasion, whereupon the burden shifts to the plaintiff to show the defendant made the statement with malice. [Citation.] The existence of the privilege is ordinarily a question of law for the court.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 915.)

It is clear then that Hobbs' potential malice in authoring the May 14 Complaint and May 15 Complaint, and the circumstances regarding her declaration that states she did not author the May 15 Complaint, are necessary to show the reasonable probability of prevailing as to the common interest privilege.

But it does not appear Plaintiff needs the other discovery to oppose the anti-SLAPP motion. The “probability of prevailing” is tested by the same standard governing a motion for summary judgment, i.e., in opposing an anti-SLAPP motion, it is plaintiff's burden to make a prima facie showing of facts that would support a judgment in plaintiff's favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 714.) The court does not weigh the credibility or comparative strength of the evidence, but instead accepts as true all evidence favorable to the plaintiff. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.App.4th 260, 291; *Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699-700.) The focus of the anti-SLAPP motion is the May 14 Complaint and May 15 Complaint. Plaintiff specifically argues that Hobbs' state of mind is relevant to the common interest privilege and is something that rests solely in the mind of Hobbs. But as to the other discovery, Plaintiff fails to sufficiently establish good cause for how the other discovery would go to the anti-SLAPP motion which is focused on the May 14 Complaint and May 15 Complaint or how such evidence could not be established via a declaration from Plaintiff himself. Moreover, Plaintiff argues the subpoenas for documents are needed so that third party documents can be, “tested against Defendants' production.” (Plaintiff's Motion, p. 12:25-26.) But again, the limited

discovery cannot be authorized for matters to impeach defendant's credibility. (See *Sipple, supra*, 71 Cal.App.4th at 247.) Moreover, as to the other claims beyond the issue of the common interest privilege, Plaintiff fails to show good cause for the discovery related to other claims via a prima facie showing at least as to the elements of the claim for which no discovery should be needed. (*Paterno, supra*, 163 Cal.App.4th at 1349.)

For these reasons, the court **GRANTS** the motion as to the requested three hour deposition of Hobbs regarding potential malice as it relates to the common interest privilege applying to the May 14 Complaint and the May 15 Complaint, as well as authorship of the May 15 Complaint. Otherwise **DENY** the motion.